

22PSCV03111 22PSCV03111

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-10

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Case Number: 22PSCV03111 Hearing Date: September 10, 2026 Dept: H

Doe v.

The Salvation Army, Case No. 22PSCV03111

ORDER

ON DEFENDANT'S EX PARTE APPLICATION TO ADVANCE HEARING DATE

The

Court has read and considered the ex parte application seeking to advance the hearing date on its Motion for Leave to File a Cross-Complaint and Amended Answer filed by Defendant The Salvation Army ("Defendant"), along with the accompanying declaration, as well as Plaintiff Jane Doe's opposition. For the reasons stated herein, the Court denies the application without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex

parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.)

As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.)

Here,

the Court finds that Defendant has

not made an affirmative factual showing of irreparable harm, immediate danger, or other statutory basis for granting relief ex parte.

Defendant asserts irreparable harm based on the current trial date of October 13, 2026 and the fact that Plaintiff engaged in “efforts to evade . . . proper and highly relevant discovery,” including by failing to obtain and produce certain foster care records and by failing to make Plaintiff’s mother available for deposition until September 2, 2026. The Court determines that these facts do not demonstrate irreparable harm. Defendant was served with this lawsuit in August 2023. Even assuming that the aforementioned discovery delays are attributable to Plaintiff, Defendant had ample opportunity to seek relief at an earlier time. (Davenport v. Blue Cross of California (1997) 52 Cal. App. 4th 435, 454-55 [a party “cannot create a justification for emergency relief by sitting on her rights until she creates an emergency situation”].)

Moreover, the underlying motion raises issues that would significantly affect the scope of litigation and thus would be better addressed upon notice and full briefing. Defendant’s request to schedule the hearing for September 11, 2026 (one day after the hearing on the ex parte application) provides the Court no meaningful time to review the motion or any opposition, and gives inadequate consideration to the Court’s calendar and other previously scheduled hearings.

Accordingly, the application is DENIED. Defendant’s Motion for Leave to File a Cross-Complaint and Amended Answer will remain set for hearing on October 12, 2026, at 9:00 a.m.

Defendant is ordered to provide notice.